

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Valentina Concha-Toro	Team: Squad #15	CCRB Case #: 202000173	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/03/2019 10:14 AM, Tuesday, 12/03/2019 1:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2022	Precinct: 40		
Date/Time CV Reported Wed, 12/11/2019 12:00 AM	CV Reported At: IG NYPD	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/08/2020 4:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officer			
2. PO Anthony Picariello	10480	963697	040 PCT
3. POM Kraig Batkiewicz	05025	964386	040 PCT
4. LT Lauren Diaz	00000	941658	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Shamrat Akanda	00371	943809	040 PCT
2. SGT Joel Polanco	04089	953261	040 PCT
3. POM Radhames Regalado	15622	957074	040 PCT
4. POM Ivan Luciano	05398	958845	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Lauren Diaz	Abuse of Authority: Lieutenant Lauren Diaz entered § 87(2)(b) in the Bronx.	A . Exonerated
B . POM Kraig Batkiewicz	Abuse of Authority: Police Officer Kraig Batkiewicz entered § 87(2)(b) in the Bronx.	B . Exonerated
C . LT Lauren Diaz	Force: Lieutenant Lauren Diaz pointed her gun at § 87(2)(b)	C . Unfounded
D . LT Lauren Diaz	Discourtesy: Lieutenant Lauren Diaz spoke discourteously to § 87(2)(b)	D . Unfounded
E . LT Lauren Diaz	Abuse of Authority: Lieutenant Lauren Diaz threatened to arrest § 87(2)(b)	E . Unfounded
F . LT Lauren Diaz	Abuse of Authority: Lieutenant Lauren Diaz entered § 87(2)(b) in the Bronx.	F . Exonerated
G . PO Anthony Picariello	Abuse of Authority: Police Officer Anthony Picariello entered § 87(2)(b) in the Bronx	G . Exonerated
H . POM Kraig Batkiewicz	Abuse of Authority: Police Officer Kraig Batkiewicz entered § 87(2)(b) in the Bronx	H . Exonerated
I . LT Lauren Diaz	Abuse of Authority: Lieutenant Lauren Diaz searched § 87(2)(b) in the Bronx.	I . Exonerated

Officer(s)	Allegation	Investigator Recommendation
J . PO Anthony Picariello	Abuse of Authority: Police Officer Anthony Picariello searched § 87(2)(b) in the Bronx	J . Exonerated
K . POM Kraig Batkiewicz	Abuse of Authority: Police Officer Kraig Batkiewicz searched § 87(2)(b) in the Bronx	K . Exonerated
L . PO Anthony Picariello	Abuse of Authority: Police Officer Anthony Picariello seized § 87(2)(b) property.	L . Exonerated
M . Officer	Abuse of Authority: An officer damaged § 87(2)(b) property.	M . Unfounded
§ 87(2)(g), § 87(4-b)		
O . LT Lauren Diaz	Untruthful Statement: Lieutenant Lauren Diaz provided an inaccurate official statement to the CCRB.	O . Substantiated

Case Summary

On December 11, 2019, § 87(2)(b) made this complaint to the IG NYPD. On January 8, 2020, it was referred to the CCRB via reference number C19-0429.

At approximately 10:14 a.m. on December 3, 2019, § 87(2)(b) and his mother, § 87(2)(b) were inside of a laundromat at § 87(2)(b) in the Bronx. The property manager of § 87(2)(b) § 87(2)(b) called 9-1-1 and reported § 87(2)(b) was breaking in. PO Kraig Batkiewicz and Lt. Lauren Diaz from the 40th Precinct responded to the location. PO Batkiewicz and Lt. Diaz entered § 87(2)(b) (**Allegations A and B: Abuse of Authority, Exonerated**). Lt. Diaz allegedly pointed her gun at § 87(2)(b) (**Allegation C: Force, Unfounded**). Lt. Diaz told § 87(2)(b) to drop his “fucking” phone, and multiple times during the incident to “shut the fuck up” (**Allegation D: Discourtesy, Unfounded**). § 87(2)(b) was placed in handcuffs. Lt. Diaz told § 87(2)(b) that she needed to leave the property if she wanted to avoid being arrested (**Allegation E: Abuse of Authority, Unfounded**). § 87(2)(b) was taken to the 40th Precinct station house. At approximately 1:30 p.m. Lt. Diaz, PO Batkiewicz and PO Anthony Picariello of the 40th Precinct returned to § 87(2)(b). Lt. Diaz, PO Batkiewicz and PO Picariello entered and searched the dry-cleaning business area (**Allegations F-K: Abuse of Authority, Exonerated**). Two vehicles belonging to § 87(2)(b) were removed from the private parking lot of § 87(2)(b) (**Allegation L: Abuse of Authority, Exonerated**). The rear windshield of one of the vehicles was allegedly shattered while in police custody (**Allegation M: Abuse of Authority, Unfounded**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) Lt. Diaz provided an inaccurate statement during her CCRB interview (**Allegation O: Untruthful Statement, Substantiated**).

Five Body-Worn Camera (BWC) videos were received in this case (Board Reviews 01-05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Lauren Diaz entered § 87(2)(b) in the Bronx.

Allegation (B) Abuse of Authority: Police Officer Kraig Batkiewicz entered § 87(2)(b) in the Bronx.

§ 87(2)(b) is a 24-hour laundromat with a fenced off private parking lot in front of it. Upon entering the doors of the laundromat building, to the left there is a separate area for a dry-cleaning business. The area of dry-cleaning business is separated by a glass door and large floor to ceiling windows.

It is undisputed that § 87(2)(b) and § 87(2)(b) had been leasing and operating the dry-cleaning business inside of the laundromat. On the morning of December 3, 2019, a City Marshal arrived at § 87(2)(b). In the presence of § 87(2)(b) the Marshal posted a notice of legal possession on the dry-cleaning business door and changed the lock. § 87(2)(b) and § 87(2)(b) arrived at the location afterwards and § 87(2)(b) manipulated the new lock to enter. At approximately 10:12 a.m. on December 3, 2019, § 87(2)(b) called 9-1-1 and the printout (Board Review 06) noted that § 87(2)(b) informed the 9-1-1 operator that § 87(2)(b) was breaking into the property. § 87(2)(b) informed the 9-1-1 operator that the Marshal had previously “taken out” § 87(2)(b) from the location. § 87(2)(b) also told the 9-1-1 operator that he had been previously informed § 87(2)(b) had firearms in the business. Lt. Diaz and PO Batkiewicz arrived at the location and entered the laundromat and the dry-cleaning business area.

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§ 87(2)(b) stated (Board Review 07) that upon arriving at the dry-cleaner, he tried to use his key to unlock the door but it did not work. § 87(2)(b) tried again with his key and the lock fell out of the door. § 87(2)(b) entered and was facing away from the front door. The open-door chime sounded, and § 87(2)(b) turned around to see Lt. Diaz inside of the dry-cleaning business with her gun drawn. § 87(2)(b) denied that he spoke to the officers before they entered.

Lt. Diaz stated (Board Review 08) that she and PO Batkiewicz arrived on scene in response to the burglary. On scene Lt. Diaz spoke to § 87(2)(b) who informed her that § 87(2)(b) had been evicted and provided her with the eviction paperwork and notice the marshal posted. Lt. Diaz approached § 87(2)(b) and spoke to him about the incident, but Lt. Diaz did not recall any specific details about this interaction with § 87(2)(b).

The BWC videos from PO Batkiewicz and Lt. Diaz (Board Reviews 01-03) captured the entirety of the incident. PO Batkiewicz and Lt. Diaz arrive and speak to § 87(2)(b) outside of the building. § 87(2)(b) informs Lt. Diaz that the marshal had changed the lock on the dry-cleaner door earlier that morning, and he had paperwork that the marshal provided. § 87(2)(b) opens the front doors of § 87(2)(b) for Lt. Diaz and PO Batkiewicz to enter. In the foyer, between the laundromat entrance and dry-cleaning business entrance, § 87(2)(b) asks to speak to Lt. Diaz and PO Batkiewicz. § 87(2)(b) gestures with his hand for them to follow him into the dry-cleaner. Lt. Diaz and PO Batkiewicz follow § 87(2)(b) through the door of the dry-cleaning business area.

§ 87(2)(g)

According to People v. McBride, 14 N.Y.3d 404 (Board Review 09), the police may proceed without a warrant to effectuate an arrest within a home if exigent circumstances exist to justify a warrantless entry.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation (C) Force: Lieutenant Lauren Diaz pointed her gun at § 87(2)(b)

Allegation (D) Discourtesy: Lieutenant Lauren Diaz spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Lieutenant Lauren Diaz threatened to arrest § 87(2)(b)

§ 87(2)(b) stated (Board Review 07) that Lt. Diaz entered the dry-cleaner and had her gun pointed at him. Lt. Diaz instructed § 87(2)(b) to drop the “fucking” phone that he held in his hand. § 87(2)(b) told Lt. Diaz that he was the owner of the business and asked to see a warrant. Lt. Diaz told § 87(2)(b) “Shut the fuck up.” Lt. Diaz holstered her gun and placed § 87(2)(b) in handcuffs. As Lt. Diaz walked § 87(2)(b) to the patrol vehicle, he asked where they were going. Lt. Diaz told § 87(2)(b) “Shut the fuck up.” Lt. Diaz used the word “fuck” when telling § 87(2)(b) to be quiet approximately three times during the incident.

§ 87(2)(b) stated (Board Review 11) that when Lt. Diaz and PO Batkiewicz walked § 87(2)(b) out to the vehicle, she followed. Once outside, § 87(2)(b) asked Lt. Diaz if she could go into the dry-cleaner to get her medication. Lt. Diaz told § 87(2)(b) she should leave if she wanted to avoid being arrested.

Lt. Diaz in her statement (Board Review 08) denied pointing her firearm at § 87(2)(b). She denied using the words “fuck,” “fucking,” or any other profane language while speaking to § 87(2)(b). She denied threatening § 87(2)(b) with arrest.

PO Batkiewicz’s BWC captured (Board Review 02) him walking behind Lt. Diaz as she enters both the front door of § 87(2)(b) and the door of the dry-cleaning business. Lt. Diaz’s hands are down at her sides and do not touch her service weapon at any point. Lt. Diaz’s BWC (Board Review 01), at internal timestamp 10:16:28, captured Lt. Diaz instructing § 87(2)(b) to put his cellphone down. From internal timestamp 10:20:04 until 10:27:50, Lt. Diaz informs § 87(2)(b) that she will speak with him at the precinct stationhouse multiple times, and at no point uses profanity. From internal timestamp 10:24:04 to 10:25:49, Lt. Diaz tells § 87(2)(b) that she could not stay at the location because § 87(2)(b) had broken the lock and § 87(2)(b) did not want her inside of the property. At no point does Lt. Diaz mention the potential arrest of § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegations C, D and E** be closed as **Unfounded**.

Allegation (F) Abuse of Authority: Lieutenant Lauren Diaz entered § 87(2)(b) in the Bronx.

Allegation (G) Abuse of Authority: Police Officer Anthony Picariello entered § 87(2)(b) in the Bronx

Allegation (H) Abuse of Authority: Police Officer Kraig Batkiewicz entered § 87(2)(b) in the Bronx

Allegation (I) Abuse of Authority: Lieutenant Lauren Diaz searched § 87(2)(b) in the Bronx.

Allegation (J) Abuse of Authority: Police Officer Anthony Picariello searched § 87(2)(b) in the Bronx

Allegation (K) Abuse of Authority: Police Officer Kraig Batkiewicz searched § 87(2)(b) in the Bronx

It is undisputed that after Lt. Diaz and PO Batkiewicz arrived at § 87(2)(b) at approximately 10:00 a.m. on December 3, 2019, § 87(2)(b) was arrested and taken to the 40th Precinct stationhouse for burglary (Board Review 10). PO Picariello was assigned the arrest. At approximately 1:30 p.m. later that day, PO Picariello, Lt. Diaz, and PO Batkiewicz returned to § 87(2)(b) because they received information about firearms in the dry-cleaner. § 87(2)(b) signed a consent to search form for the entire property of § 87(2)(b) (Board Review 12). PO Picariello, PO Batkiewicz and Lt. Diaz entered and searched inside the dry-cleaner, including inside of articles of clothing which were hanging and wrapped in plastic. A loaded firearm, a loaded magazine, and narcotics were found inside of different articles of clothing in the dry-cleaner.

§ 87(2)(b) stated (Board Review 11) that in the morning, when she arrived at the dry-cleaner, there was a posted notice that the location was closed because § 87(2)(b) and § 87(2)(b) had not paid rent. To gain access to the location they would have to go to court. § 87(2)(b) and § 87(2)(b) stated (Board Reviews 07 and 11) that they were not present at § 87(2)(b) in the afternoon of December 3, 2019, when the police officers returned. Neither were able to provide any detail in regard to afternoon entry and search.

Lt. Diaz's BWC video from the morning (Board Review 01), captured § 87(2)(b) informing Lt. Diaz that the Marshal arrived earlier in the morning of December 3, 2019, and changed the lock for the dry-cleaning business because § 87(2)(b) had been failing to pay rent. Lt. Diaz asked § 87(2)(b) if § 87(2)(b) had been served, which § 87(2)(b) confirmed and provided a copy of the Marshal's legal possession notice. At internal timestamp 10:18:56, the posted notice shown is titled "Marshal Legal Possession," with a note at the bottom that states "the landlord has legal possession of these premises." § 87(2)(b) who is wearing a jacket, is placed in handcuffs and as PO Batkiewicz walks him out the front door, § 87(2)(b) repeatedly asks § 87(2)(b) to get his coat. The BWC videos from PO Picariello and PO Batkiewicz in the afternoon (Board Reviews 04 and 05) begin with PO Picariello, PO Batkiewicz and Lt. Diaz, speaking to § 87(2)(b). § 87(2)(b) calls § 87(2)(b) the property owner, and § 87(2)(b) is placed on speaker phone. § 87(2)(b) is informed that § 87(2)(b) has a consent to search form for § 87(2)(b) and § 87(2)(b) gives verbal authorization for § 87(2)(b) to sign on his behalf. § 87(2)(b) informs all the officers and § 87(2)(b) that the dry-cleaning business and all property there in is under his custody. § 87(2)(b) signs the consent to search form. PO Picariello, PO Batkiewicz and Lt. Diaz enter the dry-cleaning business and begin searching, including but not limited to the pushcarts, cabinets, shelves, bags, and clothes. At internal time stamp 13:44:59, Lt. Diaz says, "He wanted to come back here for a coat," and to make sure "it" is not hanging and in the pockets. Lt. Diaz instructs PO Batkiewicz and PO Picariello to check the pockets of any coats that feel heavy. At internal timestamp 14:04:07, Lt. Diaz announces that she has found a firearm inside of a hanging jacket on the dry-cleaning carousel. At internal timestamp 14:27:15, PO Picariello finds a bag of rice containing narcotics. At internal timestamp 14:34:18, PO Picariello finds a loaded magazine in another jacket.

Lt. Diaz stated (Board Review 08) that while at the location in the morning, § 87(2)(b) informed her that § 87(2)(b) had been evicted and the Marshal had posted a notice on the door and changed the locks. At some point after removing § 87(2)(b) to the 40th Precinct stationhouse, information was received that firearms were possibly at § 87(2)(b). Lt. Diaz did not recall the source of the information. Lt. Diaz, PO Picariello, and PO Batkiewicz returned to § 87(2)(b) and waited for a search warrant. After obtaining the search warrant, Lt. Diaz, PO Picariello and PO Batkiewicz entered the location. Lt. Diaz stated the search warrant was sealed and refused to provide any information about it. The officers on scene searched the entire dry-cleaning business and found a firearm in one of the jackets. Lt. Diaz was not able to provide details about where she and the other officers searched, or details about the jacket in which the firearm was found.

PO Picariello stated (Board Review 13) that when he was assigned § 87(2)(b)'s arrest, Lt. Diaz and PO Batkiewicz informed him that § 87(2)(b) had been evicted from the dry-cleaner and then broke in. PO Picariello called § 87(2)(b) to obtain additional information in regard to the burglary and § 87(2)(b) informed him over the telephone that he believed § 87(2)(b) was storing firearms and selling narcotics from inside of the dry-cleaner. § 87(2)(b) arrived at the 40th Precinct stationhouse and told PO Picariello that he had heard that there were firearms and narcotics in the laundromat, and that on one occasion he observed a narcotics sale. PO Picariello, Lt. Diaz, and PO Batkiewicz returned to § 87(2)(b) and § 87(2)(b) met them there. § 87(2)(b) called the property owner and the property owner gave consent for PO Picariello, PO Batkiewicz, and Lt. Diaz to search the property.

§ 87(2)(b) signed the consent to search for with the authority of the property owner. There was no discussion with Lt. Diaz about how to search the clothes inside of the dry-cleaning business. PO Picariello, PO Batkiewicz and Lt. Diaz touched the hanging clothes on the outside of the plastic wraps until they felt something heavy and hard. Only the clothes which felt as though they had objects in their pockets were opened and searched.

The 9-1-1- call print out (Board Review 06) noted that § 87(2)(b) has been informed by other individuals that § 87(2)(b) had firearms inside of the dry-cleaner area. The consent to search form for the property of § 87(2)(b) that was signed by § 87(2)(b) was obtained (Board Review 12).

According to People v. McCullum, 159 A.D.3d 8 (Board Review 14), occupants of an apartment were effectively evicted by the execution of a "legal possession," wherein a New York City Marshal (hereinafter the City Marshal) changed the locks on the apartment, rendering all the occupants "out of possession" of the apartment, yet leaving all their personal property therein. A building security guard provided police officers with the notice of eviction and gave them the keys to the apartment to investigate a trespass. The police officers searched all the bedrooms and closets, and found firearms in the apartment. The court held that the occupant of a leasehold does not retain an expectation of privacy when a City Marshal tenders legal possession to the landlord and that the officers were justified in their entry and search of the apartment. Furthermore, because after the landlord's legal possession of the apartment the occupants no longer had legal rights to the property, any subjective expectation of privacy of the bedroom was not objectively reasonable.

§ 87(2)(g)

Therefore, it is recommended that **Allegations F-K** be closed as **Exonerated**.

Allegation (L) Abuse of Authority: Police Officer Anthony Picariello seized § 87(2)(b) s property.

It is undisputed that two vehicles were removed from the private parking lot of § 87(2)(b). Property vouchers noted (Board Review 15) that the vehicles were categorized as “safekeeping.” § 87(2)(b) had been arrested for § 87(2)(b) and was in police custody (Board Review 10).

PO Picariello stated (Board Review 13) that the parking lot in front of § 87(2)(b) had signs noting that the parking lot was private. PO Picariello called the police department's tow service to remove the vehicles. They were removed because § 87(2)(b) and § 87(2)(b) did not want them on the property.

At internal timestamp 10:17:31 in Lt. Diaz's BWC video from the morning (Board Review 01) captured § 87(2)(b) informing § 87(2)(b) that his vehicles will be towed. Lt. Diaz asks § 87(2)(b) why § 87(2)(b)'s vehicles will be towed, and § 87(2)(b) tells her that the landlord does not want the vehicles on the property.

§ 87(2)(g)

According to the NYPD Patrol Guide, Section 208-03, 218-01 and 218-12 (Board Reviews 16-18), after a person has been arrested and handcuffed, if appropriate, have their vehicle or other conveyance safeguarded. Property must be recorded into an appropriate property category, which included the option of "safekeeping."

§ 87(2)(g)

Therefore, it is recommended that **Allegation L** be closed as **Exonerated**.

Allegation (M) Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) stated (Board Review 07) that there was damage to both vehicles after they were returned. The license plate of the Toyota had been removed and placed inside of it, and it would not start. The rear window of the Armada was shattered. § 87(2)(b) stated that at the time of his interview both of the vehicles were at a mechanic for the damages.

During § 87(2)(b)'s sworn statement at the CCRB, he presented photographs of the alleged damage to his vehicles. The record reflected that there was no damage visible in the photographs and § 87(2)(b) failed to submit the photographs presented as evidence.

Lt. Diaz and PO Picariello stated (Board Reviews 08 and 13) that they were not aware of any damage to the vehicle. Lt. Diaz stated that if damage occurred to property while in police custody, it would be reflected in the property voucher. PO Picariello stated that the license plates on vehicles in police custody are removed and placed inside the vehicles for safekeeping. Vehicles are also disabled to prevent theft.

The property voucher obtained (Board Review 15) did not note any damage to the vehicles, including a broken or shattered window.

According to NYPD Patrol Guide, Section 218-12 (Board Review 18), it should be ensured that vehicles in police custody are immobilized without causing damage to vehicle.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation M** be closed as **Unfounded**.

§ 87(2)(g), § 87(4-b)

Allegation (O) Untruthful Statement: Lieutenant Lauren Diaz provided an inaccurate official statement to the CCRB.

During her CCRB statement (Board Review 08), Lt. Diaz testified that the second entry and search into § 87(2)(b) was made after a search warrant was obtained. Lt. Diaz stated that she and the other officers on scene waited until the warrant had been obtained prior to entering. Lt. Diaz refused to provide details about who requested the affidavit for the search warrant citing that the search warrant was sealed as the reason for her refusal. PO Picariello during his statement attributed the entry and search to the consent to search form, which was corroborated with BWC videos and documents.

The investigation received negative results for any search warrant for § 87(2)(b) (Board Review 26).

NYPD Patrol Guide, Section 203-08 (Board Review 27) prohibits officers from “making, or causing to be made, an inaccurate official statement,” which it defines as “a statement that a member of service knows, or should know, includes incorrect material information. There is no intent to deceive, but rather the member’s actions are grossly negligent.”

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation O** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 22).
- Lt. Diaz has been a member-of-service for 15 years and has been a subject in four prior CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- PO Batkiewicz has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.
- PO Picariello has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On November 18, 2021, a request for a Notice of Claim was submitted to the New York City Office of the Comptroller. On November 24, 2021, a positive result was received and a 50 H hearing had been scheduled for § 87(2)(b), but there was no record whether it had concluded (Board Reviews 25 and 28).

Squad: 15

Investigator: Valentina Concha-Toro Inv. Valentina Concha-Toro November 24, 2021
Signature Print Title & Name Date

Squad Leader: Simon Wang IM Simon Wang 11/24/21
Signature Print Title & Name Date

Reviewer:

CCRB Case # 202000173

Signature

Print Title & Name

Date